

STATE OF NEW YORK

8252--A

2025-2026 Regular Sessions

IN SENATE

May 27, 2025

Introduced by Sen. GIANARIS -- read twice and ordered printed, and when printed to be committed to the Committee on Agriculture -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law and the agriculture and markets law, in relation to pet dealers; and to repeal certain provisions of the general business law relating thereto

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 3 of section 752 of the general business law is
2 REPEALED and a new subdivision 3 is added to read as follows:

3 3. "Pet dealer" means any person who breeds animals and sells or
4 offers to sell more than nine animals per year that are born and raised
5 on such a person's residential premises directly to a consumer, provided
6 that it shall not include the following:

7 (a) Any municipal pound or shelter dedicated to the care of unwanted
8 animals which make such animals available for adoption whether or not a
9 fee for such adoption is charged, established and maintained pursuant to
10 subdivision one of section one hundred fourteen of the agriculture and
11 markets law, and that is duly licensed as an animal shelter pursuant to
12 article twenty-six-C of the agriculture and markets law.

13 (b) Any duly incorporated society for the prevention of cruelty to
14 animals, duly incorporated humane society, duly incorporated animal
15 protective association or other duly incorporated animal adoption or
16 animal rescue organization dedicated to the care of unwanted animals
17 which makes such animals available for adoption whether or not a fee for
18 such adoption is charged that is exempt from taxes pursuant to paragraph
19 (3) of subsection (c) of section 501 of the federal Internal Revenue
20 Code, 26 U.S.C. 501, or any subsequent corresponding sections of the the
21 federal Internal Revenue Code, as from time to time amended, that is

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 duly licensed as an animal shelter pursuant to article twenty-six-C of
2 the agriculture and markets law;

3 (c) Any public authority providing shelter services for the care of
4 unwanted animals; and

5 (d) Any retail pet shop as defined in subdivision eight of this
6 section.

7 § 2. Subdivision 8 of section 752 of the general business law, as
8 added by chapter 681 of the laws of 2022, is amended to read as follows:

9 8. "Retail pet shop" means any for-profit place of business that sells
10 or offers for sale animals to be kept as household pets, ~~[pet food or~~
11 ~~supplies,~~] but shall not include breeders who sell or offer to sell
12 directly to the consumer animals that are born and raised on the
13 breeder's residential premises.

14 § 3. Section 752 of the general business law is amended by adding a
15 new subdivision 9 to read as follows:

16 9. "Broker" means any person or business that sells or arranges, nego-
17 tiates or processes the sale of dogs, cats or rabbits bred by another or
18 that facilitates the transfer of dogs, cats or rabbits bred by another.

19 § 4. Subdivision 1 of section 753-f of the general business law, as
20 amended by chapter 35 of the laws of 2023, is amended to read as
21 follows:

22 1. A retail pet shop or broker as defined in this article shall not
23 sell, lease, offer to lease, offer to sell, barter, auction, or other-
24 wise transfer ownership of any dog, cat or rabbit. This section shall
25 not be construed to prohibit a retail pet shop from collaborating with
26 the following entities to provide space to showcase dogs, cats or
27 rabbits owned by such entities for the purpose of adoption; any duly
28 incorporated society for the prevention of cruelty to animals, duly
29 incorporated humane society, duly incorporated animal protective associ-
30 ation or other duly incorporated animal adoption or animal rescue organ-
31 ization that:

32 (a) is exempt from taxes pursuant to paragraph (3) of subsection (c)
33 of section 501 of the federal Internal Revenue Code, 26 U.S.C. 501, or
34 any subsequent corresponding sections of the federal Internal Revenue
35 Code, as from time to time amended;

36 (b) is registered with the department pursuant to ~~[section four~~
37 ~~hundred eight]~~ article twenty-six-C of the agriculture and markets law;

38 (c) is not affiliated with, or housed on the premises of a breeder or
39 broker that does not obtain dogs, cats or rabbits from a breeder or
40 broker in exchange for payment or compensation; and

41 (d) does not resell dogs, cats or rabbits obtained from a breeder or
42 broker or provide payment or compensation to such breeder or broker.

43 § 5. Subdivision 4 of section 400 of the agriculture and markets law,
44 as amended by chapter 553 of the laws of 2022, paragraphs (b) and (c) as
45 separately amended by chapters 681 and 683 of the laws of 2022, para-
46 graph (d) as amended and paragraph (e) as relettered by chapter 496 of
47 the laws of 2024, and paragraph (e) as added by chapter 681 of the laws
48 of 2022, is amended to read as follows:

49 4. "Pet Dealer" means any person who ~~[engages in the sale or offering~~
50 ~~for sale of more than nine animals per year for profit to the public.~~
51 ~~Such definition shall include breeders who sell or offer]~~ breeds animals
52 and sells or offers to sell more than nine animals per year that are
53 born and raised on such a person's residential premises directly to a
54 consumer; provided that it shall not include the following:

1 (a) [~~Any breeder who sells or offers to sell directly to the consumer~~
2 ~~fewer than twenty five animals per year that are born and raised on the~~
3 ~~breeder's residential premises;~~

4 ~~(b)~~] Any municipal pound or shelter dedicated to the care of unwanted
5 animals which makes such animals available for adoption whether or not a
6 fee for such adoption is charged, established and maintained pursuant to
7 subdivision one of section one hundred fourteen of this chapter, and
8 that is duly licensed as an animal shelter pursuant to article twenty-
9 six-C of this chapter;

10 ~~(c)~~ ~~(b)~~ Any duly incorporated society for the prevention of cruelty
11 to animals, duly incorporated humane society, duly incorporated animal
12 protective association or other duly incorporated animal adoption or
13 animal rescue organization dedicated to the care of unwanted animals
14 which makes such animals available for adoption whether or not a fee for
15 such adoption is charged that is exempt from taxes pursuant to paragraph
16 (3) of subsection (c) of section 501 of the federal Internal Revenue
17 Code, 26 U.S.C. 501, or any subsequent corresponding sections of the
18 federal Internal Revenue Code, as from time to time amended, that is
19 duly licensed as an animal shelter pursuant to article twenty-six-C of
20 this chapter; and

21 ~~(d)~~ ~~(c)~~ Any public authority providing shelter services for the care
22 of unwanted animals.

23 ~~(e)~~ ~~(d)~~ Any retail pet shop as defined in subdivision eight of
24 section seven hundred fifty-two of the general business law.

25 § 6. This act shall take effect on the same date and in the same
26 manner as chapter 683 of the laws of 2022, takes effect.